

July 19, 2026

Teresa & Chris
2367 Phillips Road
Sooke, British Columbia V9Z 1L9

Re: Invoice #40 — Response to Your Review & Settlement Proposal

Dear Teresa and Chris,

Thank you for the detailed review. I've read all of it carefully. I'd genuinely like to resolve this fairly and put it behind us, so rather than argue the file point by point, I've reconsidered a number of the charges and set out a revised position below that I hope we can agree on.

Two corrections you were right to flag

You correctly identified two errors in my cost schedule: the June 9 side-strip plants (my schedule showed \$612.50; the supplier receipt is \$453.62) and the May 6 lawn blend (shown as \$53.20; the receipt is \$47.25). I've corrected both, and I appreciate you catching them.

The finishing work and deficiencies

I also acknowledge the genuine issues you raised with some of the finishing work — the lavender-bed layout, the landscape fabric under the utility-area river rock, the material left near the pad, and some of the plants — and I've built a good-faith credit for these into the figures below. I would note that much of the outstanding finishing work stayed open because the project was paused at your request, and I remain willing to return and complete it properly (see the end of this letter).

The two items that account for most of our difference

Markup. The materials and plants were priced at what I consider fair market rates, which include the sourcing, selection, pickups, and handling I don't bill separately. That said, in the interest of resolving this, I've reduced the blended markup substantially, and I've billed the few items without receipts at cost, with no markup at all.

Split-rail fence. I've reduced the fence from \$5,450 to a revised installed value of \$4,000, reflecting the materials and the two-day install as a finished item.

Revised project value

Labour — 274.5 hrs @ \$50 (accepting your May 28 / May 29 adjustments)	\$13,725.00
Materials, plants & subcontract — at supplier cost	\$15,075.46
Reduced blended markup @ 50%	\$7,537.73
Unsubstantiated consumables (fabric, pins, weed spray, microclover) — at cost	\$787.69

Split-rail fence — revised installed value	\$4,000.00
Good-faith deficiency & completion credit	– \$2,000.00
Subtotal	\$39,125.88
GST 5%	\$1,956.29
Revised total project value	\$41,082.17
Less payment received	– \$32,500.00
Balance owing	\$8,582.17

This revised figure is roughly **\$8,500 below my invoice** and reflects real movement on my part. I'm not able to accept the position that a refund is owed, or that the remaining work be completed at no additional cost — both would leave me significantly out of pocket for materials and labour already supplied and installed.

To resolve this without further process, I propose payment of the balance of \$8,582.17 within 14 days, in full and final settlement of Invoice #40.

Alternatively, if you would prefer that I return to complete and correct the outstanding items — the lavender-bed layout, the utility-area fabric, the cleanup, and the excess aggregate — I'm glad to, with me personally on site, on the basis that the corrective scope is agreed in writing first and the settlement balance is adjusted to reflect it.

I've valued working on your property and would like to finish this on good terms. Please let me know which path you'd prefer.

This letter is provided in the interest of settlement. Nothing in it is an admission of liability, and I reserve all of my rights.

Kind regards,

Kyle McCahill

McCahill & Co. · 647-540-3607 · kyle@canopyco.ca